

Amendment No. 1 to HB1898

Vaughan
Signature of Sponsor

AMEND Senate Bill No. 2171

House Bill No. 1898*

by deleting § 68-107-102(2) in SECTION 1 and substituting:

(2) "Artificial intelligence model" or "AI" means a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations, or decisions influencing real or virtual environments and that is capable of using machine- and human-based inputs to perceive real and virtual environments, abstract such perceptions into models through analysis in an automated manner, and use model inference to formulate options for information or action;

AND FURTHER AMEND by deleting § 68-107-102(7) in SECTION 1 and substituting:

(7) "Covered chatbot":

(A) Means a service that:

- (i) Allows an ordinary person to have conversations where humanlike responses are generated by a foundation model;
- (ii) Is foreseeably likely to be accessed by minors; and
- (iii) Has at least one million (1,000,000) monthly active users; and

(B) Does not include:

- (i) Software that operates solely for the purpose of customer service, business operations, productivity and analysis related to source information, internal research, or technical assistance, regardless of the software's capability to use natural language inputs and generate natural language outputs;

(ii) Software that is incorporated into a video game and cannot discuss topics related to mental health, self-harm, or sexually explicit content, or maintain a dialogue on other topics unrelated to the video game; or

(iii) Software that operates solely in connection with a specific physical location, such as a theme park or location-based experience, including services related to visiting or accessing such location, at physical events, or for the promotion, marketing, or exhibition of a film, television program, or other audiovisual work, and which cannot maintain a dialogue on topics unrelated to the physical location, event, or such work;

AND FURTHER AMEND by deleting § 68-107-102(12) in SECTION 1 and substituting:

(12) "Frontier developer":

(A) Means a person who has used, or initiated the use of, a quantity of computing power of at least 10^{26} integer or floating-point operations to train a frontier model, including computing used for the original training run and for any subsequent fine-tuning, reinforcement learning, or other modifications the person applies; and

(B) Does not include an accredited college or university to the extent that the college or university is developing or using frontier models exclusively for academic research purposes;

AND FURTHER AMEND by inserting the following as a new subdivision (18) immediately preceding the existing subdivision (18) in § 68-107-102 in SECTION 1, and redesignating the existing subdivision (18) and subsequent subdivisions accordingly:

(18) "Monthly active users" means the total global number of unique users who have directly interacted with a service at least once in the preceding thirty (30) days, whether or not those users have registered accounts with the service;

AND FURTHER AMEND by deleting § 68-107-103(c) in SECTION 1 and substituting:

(c)

(1) Before, or concurrently with, integrating a new foundation model, or a version of an existing foundation model that has been substantially modified, into a covered chatbot operated by a large chatbot provider, the large chatbot provider shall conspicuously publish on the large chatbot provider's internet website summaries of:

(A) Assessments of child safety risks conducted pursuant to the large chatbot provider's child safety plan;

(B) The results of the assessments;

(C) The extent to which third-party evaluators were involved in the assessments; and

(D) Other steps taken to fulfill the requirements of the child safety plan.

(2) A large chatbot provider is not required to make a disclosure required under subdivision (c)(1) when integrating a modified version of an existing foundation model into its covered chatbot if:

(A) The modification to the foundation model was made by a person unaffiliated with the large chatbot provider, including the original developer of the foundation model;

(B) The modification does not increase child safety risks from the covered chatbot; or

(C) The modification was made automatically as part of a continuous learning process and the large chatbot provider has made a disclosure pursuant to subdivision (c)(1) with respect to the foundation model in the preceding ninety (90) days.

AND FURTHER AMEND by deleting § 68-107-104(g) in SECTION 1 and substituting:

(g)

(1) The attorney general and reporter may transmit reports of safety incidents, summaries of assessments of the potential for catastrophic risk from internal use of frontier models, and reports from employees made pursuant to this section to the general assembly, governor, federal government, or appropriate state agencies.

(2) The attorney general and reporter may consider any risks related to trade secrets, public safety, cybersecurity of a frontier developer or large chatbot provider, or national security when transmitting such reports.